

Citation,
construction
and com-
mencement.

7.—(1) This Act may be cited as the Educational Endowments (Scotland) Act, 1935, and the Educational Endowments (Scotland) Acts, 1928 and 1931, and this Act shall be construed as one, and may be cited together as the Educational Endowments (Scotland) Acts, 1928 to 1935.

(2) This Act shall be deemed to have had effect as from the first day of January, nineteen hundred and thirty-five.

CHAPTER 6.

An Act to make temporary provision for securing as nearly as may be that the allowances payable under Part II of the Unemployment Act, 1934, to persons who but for the operation of subsection (2) of section fifty-nine of that Act would at any time since the sixth day of January nineteen hundred and thirty-five have been entitled to transitional payments, shall not be less than the transitional payments that would have been payable to them but for the operation of the said subsection; to postpone the second appointed day for the purposes of the said Act; and for purposes connected with the matters aforesaid. [15th February 1935.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Provision of
supple-
mentary
allowances.
24 & 25
Geo. 5. c. 29.

1.—(1) Upon any application for an allowance under Part II of the Unemployment Act, 1934 (hereinafter referred to as “the principal Act”), made in respect of the period for which this section is or is deemed to have been in operation by an applicant to whom this section applies, there shall be ascertained the amount which

would, in the opinion of the officer, or on an appeal the appeal tribunal, by whom the application is determined, have been payable to him by way of transitional payments under subsection (1) of section fifty-nine of the principal Act but for the operation of subsection (2) of that section, and there shall be paid to him a sum (in this Act referred to as "a supplementary allowance") equal to the amount, if any, by which the amount so ascertained exceeds the allowance payable to him under the said Part II, or if by reason only of his inability to prove that he is in need of such an allowance no such allowance is payable in his case, equal to the amount so ascertained; and any such supplementary allowance shall be in addition to any other sum payable to him by way of allowance under the said Part II :

Provided that, where a determination made under paragraph (3) of Article one of the Unemployment Insurance (National Economy) (No. 2) Order, 1931, in the case of any such applicant was in force immediately before the first appointed day, the amount to be ascertained for the purposes of this section shall be taken to be the amount which would have been payable under that determination, unless in the opinion of the officer, or on an appeal the appeal tribunal, by whom the application for an allowance is determined, the circumstances affecting the application known to him or them are substantially different from those which appear to him or them to have been known to the council, committee, or sub-committee by whom the determination under the said paragraph (3) was made.

(2) This section applies to any applicant who would at any time since the sixth day of January, nineteen hundred and thirty-five, be, or have been, entitled to transitional payments but for the operation of subsection (2) of section fifty-nine of the principal Act.

(3) For the purposes of all the provisions of the principal Act, except those as to the amount of allowances payable under Part II thereof, a supplementary allowance payable under this section shall be deemed to be, or to form part of, as the case may be, an allowance payable under that Part of that Act, and those provisions (including provisions as to determinations and appeals) shall have effect accordingly so, however, that in relation

to supplementary allowances leave to appeal shall not be withheld under the provisions of subsection (5) of section thirty-nine of the principal Act.

(4) Where under arrangements made by the Unemployment Assistance Board with the consent of the Minister of Labour and of the Treasury for the purpose of enabling allowances under Part II of the principal Act to be supplemented so that the sums payable shall be of amounts as nearly as may be equal to those payable by reason of the provision for supplementary allowances made by this Act, payments have been made (whether before or after the passing of this Act) in respect of the period between the sixth day of January and the twenty-eighth day of February, nineteen hundred and thirty-five, those payments shall, if made in accordance with such arrangements, be deemed to have been duly made in accordance with the provisions of the principal Act and this Act.

(5) This section shall be deemed to have been in operation since the sixth day of January, nineteen hundred and thirty-five, and any determination made under the principal Act before the passing of this Act shall be revised accordingly; and this Act shall continue in operation until such date as may be determined by an order made by the Minister of Labour:

Provided that no such order shall have effect until it has been confirmed by a resolution passed by each House of Parliament.

(6) Any sums required to defray any supplementary allowances or other payments payable under this Act shall be defrayed out of moneys provided by Parliament and any such sum payable in the first instance out of the Unemployment Fund shall be repaid to that fund out of such moneys.

Postpone-
ment of
second
appointed
day.

2. Such of the provisions of the Unemployment Act, 1934 (Appointed Days) Order, 1934, made under section sixty-three of the principal Act, as relate to the appointment of the second appointed day shall cease to have effect, and the provisions of that section empowering the Minister to appoint a day as the second appointed day shall have effect as if that order had not been made.

3. This Act may be cited as the Unemployment Assistance (Temporary Provisions) Act, 1935, and the Unemployment Assistance Act, 1934, and this Act may be cited together as the Unemployment Assistance Acts, 1934 and 1935. Short title
and con-
struction.

CHAPTER 7.

An Act to make provision for the granting of financial assistance to the owners of ships registered in the United Kingdom in respect of tramp voyages carried out during the year nineteen hundred and thirty-five, and to persons qualified to be owners of British ships in respect of proposals for the improvement of merchant shipping fleets; to provide for the repeal of section eighteen of the Economy (Miscellaneous Provisions) Act, 1926; and for purposes connected with the matters aforesaid.

[26th February 1935.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

PART I.

SUBSIDY IN RESPECT OF TRAMP VOYAGES.

1.—(1) For the purpose of helping the owners of vessels registered at ports in the United Kingdom to compete with foreign shipping in receipt of subsidies from foreign Governments, the Board of Trade may, subject to such directions as may be given by the Treasury, and upon recommendations made by an advisory committee (hereinafter referred to as the "Tramp Shipping Subsidy Committee") appointed for

Payment
of subsidy.